

25STCV26311 25STCV26311

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-08-07

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Case Number: 25STCV26311 Hearing Date: August 7, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 2:53 PM on August 6, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on August 6, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

If all parties submit on the following tentative, no appearances will be necessary, and the Court will send notice to the parties of the date of a further case management conference that provides additional time for the pleadings to be set.

Plaintiffs

allege that they were fraudulently induced into funding a women's accessory

wholesale business, but Defendants used Plaintiffs' credit card, business goods and invested money for personal use unrelated to the business.

Defendant

Barbara L. Smith demurs to the First Amended Complaint.

TENTATIVE RULING

The First Amended Complaint filed on January 2, 2026 is ordered stricken pursuant to Code Civ. Proc. § 436(b). Defendant Sung Eun Kim filed an Answer to the Complaint on December 1, 2025. This cut off Plaintiffs right to amend the Complaint without leave of court. (Code Civ. Proc. § 472.)

"The right of a plaintiff to amend his complaint under the provisions of section 472 of the Code of Civil Procedure is extended only up to the time the defendant's answer is filed. Once the defendant's answer is filed, the plaintiff's right to amend as a matter of course is gone." (Citation omitted.)

(Asia Investment Co. v. Borowski (1982) 133 Cal.App.3d 832, 840.)

A plaintiff may be entitled to amend a complaint without leave of court when the amendment does not affect the allegations against any defendants who have already answered the complaint. However, the January 2, 2026 First Amended Complaint adds factual allegations concerning Defendant Sung Eun Kim, who already answered the initial complaint. Plaintiff may bring a noticed motion for leave to file a First Amended Complaint which complies with Cal. Rules of Court, Rule 3.1324. Plaintiff must also address the addition of new Plaintiff BWYB INC.

All Defendants who have not yet answered the original Complaint are ordered to do so within 10 days of this order. Upon the filing of such Answers, the case will be deemed at issue subject to a motion for leave to amend being filed. Defendants may file motions for judgment on the pleadings as they deem necessary.